

Therefore, plaintiff fails to plead with specific facts the nature of the relationship between the condition of the roadway and the injuries suffered by plaintiff sufficient to show why the condition at issue is dangerous, why a proximate causal connection between the condition of the roadway and the injury sustained; and whether there was a reasonably foreseeable risk the kind of injury which occurred would result from the alleged dangerous condition.

Second Cause of Action: Negligence

Defendants argue the second cause of action for negligence fails because public entities and their employees cannot be held vicariously liable for a dangerous property condition. The court again agrees.

“Public entity liability for property defects is not governed by the general rule of vicarious liability provided in section 815.2.” *Van Kempen v. Hayward Area Park etc. Dist.* (1972) 23 Cal.App.3d 822, 825. “[P]ublic entity liability for property defects is not governed by the general rule of vicarious liability provided in section 815.2, but rather by the provisions in sections 830 to 835.4 of the Government Code. A public employee is not liable for injuries caused by a condition of public property where such condition exists because of any act or omission of such employee within the scope of his employee.” *Longfellow v. County of San Luis Obispo* (1983) 144 Cal.App.3d 379, 383. Because this is what plaintiffs allege in the cause of action at bar, “since the employee is immune, the public entity cannot be held liable for the acts of the employee and plaintiffs have no cause of action.” *Ibid.*

Leave to Amend

The burden is on the plaintiff “to articulate how it could amend its pleading to render it sufficient.” *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290. To satisfy that burden, a plaintiff “must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349. Plaintiff did not file an opposition to Defendants’ demurrer or other papers with the court to identify the facts that he could allege to cure the defects with his first and second causes of action. Thus, the court finds that Plaintiff has not met his burden to articulate how he could amend the FAC to render it sufficient against Defendants and therefore sustains the demurrer without leave to amend.

4. CU0001750 McKellar Tree Service & Logging, Inc. v. Blue Lead Gold Mining, LLC, et al.

Intervenor Red Dog Mining and Reclamation, LLC’s (“Red Dog”) motion to release property from Mechanic’s Lien is granted.

Request for Judicial Notice

Red Dog’s unopposed requests for judicial notice filed on January 16, 2026 are granted. Evid. Code § 452(d). McKellar Tree Service & Logging, Inc.’s (“McKellar”) requests for judicial notice are granted. Evid. Code § 452(d). Judicial notice is limited to the fact that the documents

were filed, but not of the truth of their contents. *Williams v. Wraxall* (1995) 33 Cal.App.4th 120, 130, fn. 7.

Red Dog's requests for judicial notice on reply are denied. *Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400 ("Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, but do not take judicial notice of the truth of the factual matters asserted in those documents"); *Gould v. Maryland Sound Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1145 ("the existence of a contract between private parties cannot be established by judicial notice"); *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 607-608 (materials prepared by private parties and merely on file with state agencies are not ordinarily not properly subject to judicial notice"); *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 889 (while judicial notice may be taken of the existence of government websites, "the same is not true of their factual content").

"Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning." *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374.

Evidentiary Objection

McKellar has submitted an evidentiary objection to Statement 5 and the document attached as Exhibit B in the Declaration of Olaf Bleck. The objections are unnecessary. The court, when reviewing the evidence, is presumed to ignore material it knows is incompetent, irrelevant, or inadmissible. *In re Marriage of Davenport* (2011) 194 Cal.App.4th 1507, 1526. As such, the court declines to rule on the objection because it is aware of the rules of evidence, and how much weight, if any, should be given to the proposed evidence.

Legal Standard

A property owner may challenge a mechanic's lien or stop notice via motion. *Lambert v. Superior Court* (1991) 228 Cal.App.3rd 387. A *Lambert* motion to remove a mechanic's lien is recognized as a device that allows the property owner to obtain speedy relief from an unjustified lien, or a lien of an unjustified amount, without waiting for trial on the action to foreclose the lien. *Connolly Devel., Inc. v. Superior Court of Merced County* (1976) 17 Cal.3d 803, 822-823; *Howard S. Wright Construction Co. v. Superior Court* (2003) 106 Cal.App.4th 314, 318 (*Howard*).

"The inquiry upon such motion is...limited to the 'probable validity' of the lien" and the burden is on the party opposing the motion – i.e., the claimant-plaintiff – to establish the probable validity of the underlying claim." *Howard, supra*, at 318-319. "The claimant-plaintiff must establish the probable validity of the claim by a preponderance of the evidence." *Id.* Pursuant to Code of Civil Procedure section 405.3, "probable validity" means "that it is more likely than not that the claimant will obtain a judgment against the defendant on the claim." Code Civ. Proc. § 405.3.

In deciding such a motion, "the question presented is not the ultimate merit of the contractor's claim but whether the contractor should be entitled to retain the security of the mechanic's lien or

stop notice pending resolution of the matter.” *Cal Sierra Construction, Inc. v. Comerica Bank* (2012) 206 Cal.App.4th 841, 850.

Discussion

Red Dog moves to release the mechanic’s lien on the basis that it is invalid because Plaintiff McKellar did not record the lien within the time allowed under Civil Code sections 8412(a) and/or 8414(a). The court agrees.

A direct contractor may not enforce a lien unless the contractor records a claim of lien after the contractor completes the direct contract, and before the earlier of the following times:

- (a) Ninety days after completion of the work of improvement.
- (b) Sixty days after the owner records a notice of completion or cessation.”

Civ. Code § 8412.

A claimant other than a direct contractor may not enforce a lien unless the claimant records a claim of lien within the following times:

- (a) After the claimant ceases to provide work.
- (b) Before the earlier following times:
 - (1) Ninety days after completion of the work of improvement.
 - (2) Thirty days after the owner records a notice of completion or cessation.

Civ. Code § 8414.

“[C]ompletion of a work of improvement occurs upon the occurrence of any of the following events: (1) Actual completion of the work of improvement.... (3) Cessation of labor for a continuous period of 60 days.” Civ. Code § 8180(a).

At bar, Plaintiff argues the mechanic’s lien was timely recorded because “the work was not completed as there was still 2.82 acres still to complete, as well as clearing/burning brush piles for the entire 73 acres” and a Timber Harvest Plan “has not been signed off as finished by the State.” Opp. 5:8-10, 5:14-16. This argument is not availing.

The Complaint states, “Plaintiff entered and executed a contract on or about November 24, 2022, with Defendant Enegix Mining Group (“EMG”) for logging operations at the Subject Property.” Red Dog, RJN, Exh. 1, ¶ 4. The Complaint adds the work “has not been completed due to lack of payment to Plaintiff for the work Plaintiff performed.” *Id.* Additionally, the Complaint states,

“Plaintiff has performed all obligations required of it pursuant to the agreement.” *Id.* at ¶ 10. In support of McKellar’s request for entry of default judgment, it filed a declaration stating that the contract “was entered into on or about October 4, 2022 between MTSL and Enegix Mining Group, LLP.... I...have personal knowledge that the work contracted for was completed in full on or about November 24, 2022.” Red Dog RJN, Exh. 2, McKellar Decl. ISO Default Judgment, ¶ 2. “MTSL performed and completed the contracted work on or about November 24, 2022.” *Id.* at ¶ 4. McKellar also filed a declaration in support of its request for default judgment stating, “Invoice No. 1130 was sent on or about the date of completion....” Red Dog RJN, Exh. 3, Ingraham Decl. ISO Default Judgment, ¶ 3. Invoice No. 1130 shows the last date of logging as 10/24/2022, and all subsequent fees are late fees. *Id.* at Exh. 2. “Invoice No. 1129 was sent on or about the date of completion....” *Id.* at ¶ 4. Invoice No. 1129 shows the date of logging as 11/24/2022, with all subsequent charges as late fees. *Id.* at Exh. 3.

The primary evidence for plaintiff’s opposition is the declaration of Doug McKellar, President and Chief Executive Officer for McKellar. He states the contract was to harvest 73 acres of timber from the property, but McKellar only completed 70.18 acres, leaving 2.82 acres to be cleared, consequently meaning the project has not been completed. McKellar Decl., ¶ 3. Such is insufficient to meet Plaintiff’s burden to establish the probable validity of the claim.

As asserted by Red Dog, completion of work occurs after labor ceases for a continuous 60 day period. Civ. Code § 8180(a). Plaintiff has provided no evidence that any work occurred after November 24, 2022 and the filing of the mechanic’s lien on October 7, 2024. Therefore, absent other evidence to the contrary, to be timely, a lien would have to have been filed within 150 days of November 24, 2022. Such did not occur.

The argument the project has not been completed, if successful, might assist Plaintiff in arguing the lien was timely made if its contention was that all work had been completed within 90 days prior to the recordation of the mechanic’s lien. However, its argument the project had not yet been completed even at the time of recordation of the lien would lead to the conclusion the lien was recorded prematurely and should still be expunged. Therefore, short of evidence there was ongoing work between November 24, 2022 and ninety days prior to the recording of the lien, Plaintiff has not established the probable validity of the claim underlying the lien.

Because the court finds the above sufficient basis to release the lien, it need not reach Red Dog’s other arguments regarding the validity of the lien.

5. CU0001842 Charles Eugene Murdock v. Jodi Michelle Andrews

Defendant Donald Leslie Ringen’s motion for stay of case pending conclusion of criminal case against Defendant Jodi Michelle Andrews is denied.

Legal Standard

Pursuant to Code of Civil Procedure § 128(a)(3), every court has the power to provide for the orderly conduct of proceedings, including the power to stay a civil action pending outcome of a related criminal case.